

BLOG SECTION

Legal blogs, on the other hand, are platforms where individuals or organizations share their insights, analysis, opinions, or commentary on legal topics.

1. They can cover a wide range of subjects within the legal field, including case summaries, legal analysis, commentary on recent rulings or legislation, practical advice for legal professionals, and discussions on legal trends or issues.
2. Unlike legal news, blogs often include subjective interpretations, perspectives, or arguments presented by the author(s).
3. While some legal blogs may provide news updates alongside commentary, their primary focus is typically on offering deeper insights or discussions on legal matters.

In summary, while legal news provides factual updates on recent legal events, blogs offer analysis, commentary, and discussions on legal topics, often incorporating the author's perspective or opinions.

PROMPT USE FOR HEADNOTE---

PROMPT USE FOR CRUX ---

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1. HEADING OUTLINE

You Can't Automatically Build A Mosque Just Because There Used To Be One In The Past In The Same Spot [(1953) 1 SCC 431]

CRUX OF THE CASE

YOU CAN'T AUTOMATICALLY BUILD A MOSQUE JUST BECAUSE THERE USED TO BE ONE IN THE PAST IN THE SAME SPOT [(1953) 1 SCC 431]

**Prepared & Published – By Adv. Himanshu Adhikari
Date- 12 May 2024**

Aspect	Details
Case Title	Khalil Manihar v. Baldeo Shah [(1953) 1 SCC 431]
Citation	(1953) 1 SCC 431
Court	Supreme Court
Location	Maunath Bhanjan
Parties	- Appellants: Representing the Mohammedan Community
	- Respondent: Baldeo Shah
Dispute	Possession of plots claimed by the respondent, alleging they belonged to a Math
Allegation	Construction of a mosque on the land without proper authorization
Trial Court	Suit dismissed, but injunction granted
Appeals	Both parties appealed
Civil Judge	Modified decree in favor of the respondent
High Court	Upheld the Civil Judge's decision
Appeal to Privy Council	Appellants sought leave, arguing the land was waqf property
Supreme Court Findings	- No dedication or grant for the mosque
	- Mosque stood for only 8-9 years before being destroyed
Decision	Appeal dismissed, stating no rights were acquired merely by the building's existence

KHALIL MANIHAR V. BALDEO SHAH, (1953) 1 SCC 431, the Supreme Court addressed a dispute over possession of plots in Maunath Bhanjan. The respondent sought possession against the appellants, representing the Mohammedan Community, claiming the plots belonged to a Math. It was alleged that a mosque had been built on the land without proper authorization. The trial court dismissed the suit but granted an injunction. Both parties appealed, and the Civil Judge modified the decree in favor of the respondent. The High Court upheld this decision. The appellants sought leave to appeal to the Privy Council, arguing the land was waqf property. The Supreme Court noted there was no dedication or

grant for the mosque, and it stood for only 8-9 years before being destroyed. Thus, the Court dismissed the appeal, stating no rights were acquired merely by the building's existence.

NOTE- Religious endowments are set up to help with religious duties, maintain temples, and support religious leaders. People called Shebaites or Mahants usually take care of these endowments and perform religious activities. Charitable endowments are made to support good causes and help people in need. According to the Waqf Act of 1995, a 'waqf' is when someone who practices Islam permanently dedicates property, like land or money, for a purpose that Muslim law sees as religious, pious, or charitable. This dedication can be in writing or spoken, but it needs to clearly show the intention to dedicate the property.

Source- SCC Online

2. HEADING OUTLINE

Supreme Court Rules On The Jurisdiction Of Special Court Headed By Sessions Judge Or Additional Sessions Judge To Handle Complaints Under IBC

CRUX OF THE CASE

SUPREME COURT RULES ON THE JURISDICTION OF SPECIAL COURT HEADED BY SESSIONS JUDGE OR ADDITIONAL SESSIONS JUDGE TO HANDLE COMPLAINTS UNDER IBC

Prepared & Published – By Adv. Himanshu Adhikari

Date- 12 May 2024

Aspect	Details
Case Title	Appeal against Bombay High Court's judgment
Issue	Quashing of complaint filed by Insolvency and Bankruptcy Board of India (IBBI) due to filing before a Sessions Judge instead of a Metropolitan Magistrate or Judicial Magistrate of the First Class
Court's Finding	Reference to 'Special Court established under Chapter XXVIII of the Companies Act, 2013' in Section 236(1) of the Insolvency and Bankruptcy Code, 2016 (Code) is 'legislation by incorporation' not 'legislation by reference'
Court's Ruling	Special Court presided by a Sessions Judge or an Additional Sessions Judge has jurisdiction to try the complaint under the Code
Remittance to High Court	Matter remitted to the High Court to consider the petition of the respondents afresh on merits
Challenge	Insolvency and Bankruptcy Board of India (IBBI) challenged Bombay High Court's order which allowed petition filed by Ex-Directors of SBM Paper Mills Pvt. Ltd. challenging the order passed by Additional Sessions Judge
Interpretation of Law	Court interpreted Section 236(1) of the Code and Section 435 of the Companies Act, 2013 regarding Special Courts
Legislative Intent	Legislative intent was to freeze the provision regarding the reference in Section 236(1) of the Code to Special Court as mentioned in Section 435 of the Companies Act, 2013 as on the date of enactment of the Code
Error in High Court's Judgment	High Court erred in holding that offences under the Code shall be tried only by a Metropolitan Magistrate or a Judicial Magistrate of the First Class
Rejection of High Court's Logic	High Court's logic that only offences under the Companies Act would be tried by a Special Court of Sessions Judge or Additional Sessions Judge and all other offences including under the Code shall be tried by a Metropolitan Magistrate or a Judicial Magistrate of the First Class was rejected

Aspect	Details
Court's Suggestion	High Court could have directed the complaint to be withdrawn and presented before the appropriate Court having jurisdiction instead of quashing it

The Supreme Court heard an appeal against the Bombay High Court's decision to dismiss a complaint filed by the Insolvency and Bankruptcy Board of India (IBBI). The High Court had ruled that the complaint was filed before a Special Court presided by a Sessions Judge, which was not permissible under the amended Insolvency and Bankruptcy Code, 2016 (Code). However, the Supreme Court held that the reference to the Special Court in the Code is a 'legislation by incorporation', meaning the Special Court headed by a Sessions Judge or Additional Sessions Judge has the jurisdiction to try the complaint. The matter was sent back to the High Court for reconsideration. The Court emphasized that subsequent amendments to the Companies Act, 2013, did not affect the jurisdiction of the Special Court established under Chapter XXVIII of the Act. It criticized the High Court's decision to quash the complaint solely based on the court presiding over it, suggesting that the High Court could have directed the complaint to be presented before the appropriate court instead.

Source- SCC Online

3. HEADING OUTLINE

Pregnant Person's Autonomy Paramount In Termination: Supreme Court

CRUX OF THE CASE

PREGNANT PERSON'S AUTONOMY PARAMOUNT IN TERMINATION: SUPREME COURT

Prepared & Published – By Adv. Himanshu Adhikari

Date- 12 May 2024

Aspect	Details
Background	The Bombay High Court dismissed a petition seeking termination of pregnancy for a minor who was allegedly sexually assaulted, stating that the pregnancy exceeded the statutory limit of 24 weeks. The case reached the Supreme Court, which directed the constitution of a new medical board to assess the situation.
Decision	The Supreme Court recalled its earlier order permitting termination of pregnancy after considering the risks associated with the procedure at an advanced stage of pregnancy and the parents' preference not to proceed.
Role of RMP and Medical Board under MTP Act	The court emphasized that RMPs and medical boards are protected under the Medical Termination of Pregnancy (MTP) Act if they act in good faith. The medical opinion must balance legislative mandates with the pregnant person's rights and provide detailed reasoning.
Primacy of Pregnant Person's Consent in Abortion	The MTP Act prioritizes the pregnant person's choice in abortion, with no interference allowed from family or partners. In the case of a minor, their opinion should be considered alongside the guardian's, but the pregnant person's preference holds importance.
Directions	The Sion hospital was instructed to cover all expenses for the minor's hospitalization and delivery. If the minor and her parents choose adoption after delivery, the state government should facilitate the process according to the law.

The Supreme Court reversed the Bombay High Court's decision to deny termination of pregnancy to a minor who was allegedly sexually assaulted. The Court emphasized the importance of the MTP Act in protecting the rights of Registered Medical Practitioners (RMP) and Medical Boards when forming opinions regarding termination of pregnancy. It highlighted the necessity for Medical Boards to consider not only statutory criteria but also the physical and emotional well-being of the pregnant person. The Court stressed the paramountcy of the pregnant person's consent in reproductive decisions and recognized the divergence between the opinions of the pregnant person and their guardian,

particularly for minors. The Court directed a fresh Medical Board to evaluate the case comprehensively, considering the minor's well-being. It noted the MTP Act's provisions regarding termination in specific circumstances, emphasizing the importance of balancing legal mandates with fundamental rights. The Court underscored the need for detailed reasoning from Medical Boards when issuing clarifications and emphasized the primacy of the pregnant person's autonomy. The Court issued directions for the hospital to cover expenses and for the State Government to facilitate adoption if desired.

Source- SCC Online

4. HEADING OUTLINE

CESTAT Ruled That Buying Coal From Coal Companies To Sell To Consumers Isn't A Taxable Service Under The Finance Act, 1994

CRUX OF THE CASE

CESTAT RULED THAT BUYING COAL FROM COAL COMPANIES TO SELL TO CONSUMERS ISN'T A TAXABLE SERVICE UNDER THE FINANCE ACT, 1994

**Prepared & Published – By Adv. Himanshu Adhikari
Date- 13 May 2024**

Aspect	Details
Case Title	National Co-operative Consumers' Federation of India Ltd. v. CCE, Service Tax Appeal No. 56768 of 2013, Order dated 10-05-2024
Tribunal	Customs, Excise and Service Tax Appellate Tribunal, New Delhi
Appellant	National Co-operative Consumers' Federation of India Limited
Respondent	Commissioner of Central Excise
Issue	Confirmation of demand of service tax under Business Auxiliary Service category against the appellant
Allegation	Non-discharge of service tax liability on the appellant despite the service provided to Coal India Limited (CIL)
Basis of Demand	Service tax applicable on promotion, marketing, or selling of goods of the client, if acting as the client's agent under Section 65(19)(i) of the Finance Act, 1994
Nature of Transaction	Purchase of coal from coal companies for reselling to coal consumers
Relationship with Coal Companies	Principal-to-principal basis, not as an agent
Taxability	Absence of service element due to the nature of the transaction; sale/purchase instead of promotion, marketing, or selling as an agent under Business Auxiliary Service category
Evidence	Payment of entire price to coal companies before procuring coal; refund of excess amount by coal companies; issuance of invoices showing payment of sales tax/VAT by appellant and consumers
Precedent	Bhopal Sugar Industry Limited v. STO, (1977) 3 SCC 147
Decision	Tribunal set aside the impugned order, ruling that appellant couldn't be charged with service tax as the transaction was of sale/purchase on a principal-to-principal basis.

In the case of **NATIONAL CO-OPERATIVE CONSUMERS' FEDERATION OF INDIA LTD. V. CCE, THE CUSTOMS, EXCISE AND SERVICE TAX APPELLATE TRIBUNAL**, New Delhi, ruled in favor of the appellant. The appellant, a cooperative society, was allocated coal by Coal India Limited for distribution among small/tiny consumers. The issue was whether the appellant was liable to pay service tax under the category of Business Auxiliary Service for promoting, marketing, or selling goods belonging to CIL.

The Tribunal found that the appellant was not acting as an agent of the coal companies but was purchasing coal for resale to consumers. The transaction was deemed to be a sale/purchase, as evidenced by invoices showing payment of sales tax/VAT. The Tribunal concluded that the appellant was not providing a taxable service under the category of business auxiliary service, as there was no agency relationship with the coal companies. Therefore, the demand for service tax was set aside, and the appellant was not held liable for the same.

Source- SCC Online

5. HEADING OUTLINE

Justice (Retd.) Sanjaya Kumar Mishra's appointment kickstarts the functioning of GSTAT, a vital entity for settling GST disputes.

CRUX OF THE CASE

APPOINTMENT OF JUSTICE (RETD.) SANJAYA KUMAR MISHRA HERALDS THE COMMENCEMENT OF GSTAT'S OPERATIONALIZATION, A PIVOTAL STEP IN RESOLVING GST-RELATED DISPUTES."

Prepared & Published – By Adv. Himanshu Adhikari

Date- 13 May 2024

Event Description	Details
Event	Union Minister for Finance and Corporate Affairs Nirmala Sitharaman administered the oath of integrity and secrecy to Justice (Retd.) Sanjaya Kumar Mishra as the President of the GST Appellate Tribunal (GSTAT), in New Delhi
Date	06-05-2024
Background	- Justice (Retd.) Sanjaya Kumar Mishra is a former Chief Justice of the Jharkhand High Court - Selected by a Search-cum-Selection Committee headed by the Chief Justice of India
Role of GSTAT	- Appellate Authority established under the Central Goods and Services Tax Act, 2017 - Hears appeals under the said Act and the respective State/Union Territories GST Acts against orders of the first appellate authority
Structure of GSTAT	- Consists of a Principal Bench located at New Delhi, and 31 State Benches at various locations across the country - Process for appointment of Judicial Members and Technical Members is ongoing
Objective	- Ensures swift, fair, judicious, and effective resolution of GST disputes - Significantly reduces burden on higher Courts
Impact	- Enhances effectiveness of the GST system in India - Fosters a more transparent and efficient tax environment in the country

6. HEADING OUTLINE

"MP High Court levies a fine of ₹1 lakh on a news editor for defaming a sitting judge through a news report dating back to 2011."

CRUX OF THE CASE

"MP HIGH COURT LEVIES A FINE OF ₹1 LAKH ON A NEWS EDITOR FOR DEFAMING A SITTING JUDGE THROUGH A NEWS REPORT DATING BACK TO 2011."

Prepared & Published – By Adv. Himanshu Adhikari
Date- 13 May 2024

Aspect	Details
Case Title	In Reference v. Suman Singh Sikarwar, Contempt Petition Criminal No. 1 of 2014, order dated 06-05-2024
Court	Madhya Pradesh High Court
Division Bench	Ravi Malimath, C.J., and Milind Ramesh Phadke, J.
Finding	Respondent's actions constituted criminal contempt under Section 2(c) of the Contempt of Courts Act, 1971
Punishment	Fined Rs. 2,000/- and costs of Rs. 1,00,000/- to the M.P. High Court Bar Association, Gwalior
Facts	- Contempt petition initiated against the editor of a Hindi newspaper in Gwalior - Based on a news item published in "Dainik Chambal Vani" on 11-04-2011, scandalizing a judge of the High Court of Madhya Pradesh, Justice Modi
Issue Pointer	Whether the publication of the news item and subsequent actions of the respondent constitute criminal contempt under Section 2(c) of the Contempt of Courts Act, 1971?
Court's Observation	- Respondent's comments intended to scandalize and lower the authority of the judiciary - Despite opportunities to apologize and show genuine remorse, respondent persisted in defending the contemptuous actions
Court's Decision	- Respondent found guilty of criminal contempt - Imposed a fine and costs - Ordered respondent to pay costs to the M.P. High Court Bar Association - Contempt petition disposed of
Relevant Precedents	- Prashant Bhushan, In re (Contempt Matter), (2021) 1 SCC 745 - D.C. Saxena v. Chief Justice of India, (1996) 5 SCC 216 - Baradakanta Mishra v. Registrar of Orissa High Court, (1974) 1 SCC 374
Importance of Decision	Emphasized upholding the dignity and authority of the judiciary and deterring actions undermining public confidence in the administration of justice

Aspect	Details
Respondent's Actions	Persisted in justifying the publication despite warnings and opportunities to retract statements - Attempted to withdraw pleadings and submitted an oral apology, deemed insincere by the Court

In the case of **IN REFERENCE V. SUMAN SINGH SIKARWAR, CONTEMPT PETITION CRIMINAL NO. 1 OF 2014**, the Madhya Pradesh High Court addressed a criminal contempt petition against the editor of a Hindi newspaper in Gwalior. The petition stemmed from the publication of a news report in 2011 that scandalized one of the sitting judges of the Madhya Pradesh High Court, Justice Modi. The division bench, consisting of Ravi Malimath, CJ., and Milind Ramesh Phadke, J., found the respondent guilty of criminal contempt under Section 2(c) of the Contempt of Courts Act, 1971. Despite warnings and opportunities to retract statements, the respondent persisted in justifying the publication, displaying a lack of remorse. The court imposed a fine of Rs. 2,000/- and costs of Rs. 1,00,000/- to the M.P. High Court Bar Association, Gwalior, as punishment. The case revolved around a news item published in the Hindi newspaper "Dainik Chambal Vani," which attempted to scandalize the image of a Judge of the High Court of Madhya Pradesh. The court emphasized the importance of upholding the dignity and authority of the judiciary, deterring actions that undermine public confidence in the administration of justice. Despite opportunities to apologize, the respondent persisted in defending the contemptuous actions, leading the court to deem the respondent's attempts at apology as insincere. Consequently, the court held the respondent-contemnor guilty of committing criminal contempt and imposed a fine and costs, disposing of the contempt petition.

Source- SCC Online

7. HEADING OUTLINE

MP High Court denies plea to dismiss FIR after allegations of 'Throwing 13-month-old child on floor' in courtroom due to severity of accusations

CRUX OF THE CASE

MP HIGH COURT DENIES PLEA TO DISMISS FIR AFTER ALLEGATIONS OF 'THROWING 13-MONTH-OLD CHILD ON FLOOR' IN COURTROOM DUE TO SEVERITY OF ACCUSATIONS

Prepared & Published – By Adv. Himanshu Adhikari

Date- 13 May 2024

Aspect	Details
Case Title	Bharti Patel v. State of M.P., Misc. Criminal Case No. 45545 Of 2023, order dated 03-05-2024
Court	Madhya Pradesh High Court
Bench	Single-judge bench, G.S. Ahluwalia, J.
Summary	Application to quash FIR and discharge from charges dismissed
Application Filed	Under Section 482 of the CrPC
Charges Alleged	Offences under Sections 452, 323, and 294 of IPC
Incident	Disturbance in courtroom; child endangered by throwing incident
Previous Incident	-Child thrown in courtroom, -Paperweight thrown; -FIR under Section 307 IPC
Additional Proceedings	Contempt proceedings under Section 12 of the Contempt of Courts Act
Court's Observation	-Child endangerment tantamount to attempted murder -Disruptive behavior unacceptable
Decision	No sympathetic view due to seriousness of allegations; application dismissed

The case of **BHARTI PATEL V. STATE OF M.P.**, Misc. Criminal Case No. 45545 Of 2023, order dated 03-05-2024, heard in the Madhya Pradesh High Court, involved an application to quash an FIR and discharge from charges. The single-judge bench, presided over by G.S. Ahluwalia, J., dismissed the application, emphasizing the seriousness of the appellant's conduct, which included attempting to kill her child and disrupting court proceedings. Despite arguments of false FIR lodging, the Court highlighted previous incidents involving child endangerment and disruptive behavior. It reasoned that such actions amounted to attempted murder and were unacceptable. The Court stressed the need for a thorough investigation and rejected the plea for sympathy, ultimately dismissing the application for FIR quashing and discharge from charges.

Source- SCC Online

8. HEADING OUTLINE

Bombay HC Orders AAI to Provide Maternity Benefits for Third Child, Clarifies Regulations Aim Not to Control Population

CRUX OF THE CASE

BOMBAY HC ORDERS AAI TO PROVIDE MATERNITY BENEFITS FOR THIRD CHILD, CLARIFIES REGULATIONS AIM NOT TO CONTROL POPULATION

Prepared & Published – By Adv. Himanshu Adhikari

Date- 14 May 2024

Aspect	Details
Case Title	Airports Authority of India Workers Union v. Union of India, Writ Petition No. 8744 of 2015, decided on 10-5-2024
Court	Bombay High Court
Petitioners	Filed under Article 226 of the Constitution by petitioners
Respondents	Respondent 2, Senior Manager (HR), Airport Authority of India
Date	Communications dated 28-1-2014 and 31-3-2014
Judges	Division Bench of A.S. Chandurkar and Jitendra Jain, JJ.
Summary	Petitioner 2's application for maternity leave was rejected based on Airport Authority of India (Leave) Regulations, 2003. The court opined that her claim was justified as she had only two surviving children during her service.
Background	Petitioner 2 had two children after joining the service, but her first child was born before joining. The rejection was based on having more than two surviving children.
Analysis and Decision	The court clarified that the regulation's objective was to provide maternity leave benefits, not to control population. It emphasized that women employees should be supported during pregnancy and maternity leave is a natural right. The court allowed the petition, quashing the rejection and directing the grant of maternity benefits for the birth of the second child during Petitioner 2's service.
Precedents	Relied on Deepika Singh v. Central Administrative Tribunal, 2022 SCC OnLine SC 1088, emphasizing the right to maternity leave.

In a petition by **AIRPORTS AUTHORITY OF INDIA WORKERS UNION V. UNION OF INDIA, WRIT PETITION NO. 8744 OF 2015**, under Article 226, decided on 10-5-2024. Bombay High Court ruled in favor of Petitioner 2, challenging communications rejecting her maternity leave application. The court directed the grant of maternity benefits, noting she had only two children during her service. Despite having a child from a previous marriage, the court emphasized the regulation's objective was maternity leave benefits, not population control. It stressed women's dignity at work and relied on precedent

recognizing the right to maternity leave. The court quashed the communications and ordered the grant of benefits for Petitioner 2's second child.

Source- SCC Online

9. HEADING OUTLINE

Delhi High Court Denies Injunction to [SPARX] Against Hrithik Roshan's XS Brands Consultancy for 'X' Mark Usage.

CRUX OF THE CASE

DELHI HIGH COURT DENIES INJUNCTION TO [SPARX] AGAINST HRITHIK ROSHAN'S XS BRANDS CONSULTANCY FOR 'X' MARK USAGE.

**Prepared & Published – By Adv. Himanshu Adhikari
Date- 14 May 2024**

Aspect	Details
Case	Relaxo Footwears Limited v XS Brands Consultancy Private Limited
Case Number	CS(COMM) 917/2018
Date of Decision	03-05-2024
Court	Delhi High Court
Parties	- Relaxo Footwears Limited (plaintiff)
	- XS Brands Consultancy Private Limited (defendants)
Relief Sought	Permanent injunction restraining defendants from - Manufacturing, selling, advertising, etc., using the mark - 'HRX'/'HRX BY HRITHIK ROSHAN' - (Defendants' X mark) or any other mark identical or - Deceptively similar to plaintiff's trademark (plaintiff's X mark)
Decision	Plaintiff's application for permanent injunction dismissed
Judge	Anish Dayal, J.
Key Points	- Defendants' adoption of the X mark not considered dishonest - Defendants in the market for over a decade, favoring them - Examination of trademark infringement and passing off - Plaintiff's extensive use and investment in 'X' mark - Defendants' contention of distinctiveness and prior use - Existence of prior agreements and marketplace complexity - Likelihood of consumer confusion assessed - Legal principles and precedents applied in analysis

In the case of **RELAXO FOOTWEARS LIMITED V XS BRANDS CONSULTANCY PRIVATE LIMITED**, the Delhi High Court was presented with a dispute over trademark infringement and passing off related to two distinctive marks: the plaintiff's 'X' mark and the defendants' 'X' mark, in the context of footwear products. The plaintiff sought a permanent injunction against the defendants, alleging that their use of a similar mark caused confusion and dilution of their trademark. The court, presided over by Justice Anish Dayal, considered the extensive use and investment made by the plaintiff in their mark since 1976. However, it

ruled that the defendants' adoption of the 'X' mark was not dishonest, considering their substantial presence in the market since 2013 and the manner in which both parties used the mark alongside their principal brand names. The court concluded that the plaintiff had not adequately demonstrated the likelihood of confusion, and therefore dismissed their application for a permanent injunction.

Source- SCC Online

10. HEADING OUTLINE

Patna High Court said no to a husband's request for anticipatory bail. They mentioned that a husband shouldn't be allowed to treat his wife poorly whenever he wants.

CRUX OF THE CASE

PATNA HIGH COURT SAID NO TO A HUSBAND'S REQUEST FOR ANTICIPATORY BAIL. THEY MENTIONED THAT A HUSBAND SHOULDN'T BE ALLOWED TO TREAT HIS WIFE POORLY WHENEVER HE WANTS

Prepared & Published – By Adv. Himanshu Adhikari

Date- 14 May 2024

Aspect	Details
Title	Md. Irshad Kuraishi v. State of Bihar
Case Number	Criminal Miscellaneous No. 60431 of 2022
Court	Patna High Court
Date	03-05-2024
Judge	Purnendu Singh, J.
Summary	Husband seeks pre-arrest bail for offences under IPC and Dowry Prohibition Act
Background	Marriage solemnized according to Muslim rites. Allegations of dowry demands, torture, and cruelty by husband towards wife. Husband suspected wife was pregnant before marriage. Anticipatory bail sought after wife filed complaint. Earlier bail application dismissed. Supreme Court remanded matter to High Court.
Observations	Husband contracted second marriage without divorcing first wife. Failed to prove first wife's consent to second marriage. Although lawful, second marriage causes cruelty to first wife. Husband's conduct disrespectful towards first wife. Lack of evidence to support husband's claims. First wife willing to reconcile.
Decision	Court denies pre-arrest bail to husband.

In the case of **MD. IRSHAD KURAISHI V. STATE OF BIHAR, CRIMINAL MISCELLANEOUS NO. 60431 OF 2022**, decided on 03-05-2024, before the Patna High Court, the petitioner-husband sought pre-arrest bail for criminal charges under various sections of the Penal Code and the Dowry Prohibition Act. Allegations against the husband included dowry demands and mistreatment of his wife. The husband claimed his wife cheated him regarding her pregnancy prior to marriage. Despite attempts at reconciliation, the husband's bail plea was initially dismissed by the Sessions Judge. Upon contesting this decision, the case was remanded back to the High Court. Observing that the husband had

entered into a second marriage without divorcing his first wife and failed to prove her consent to it, the Court noted the cruelty caused by such actions. While Muslim law permits polygamy, the Court emphasized that legality does not justify cruelty. The husband's behavior in court further indicated his disregard for his wife's dignity. Consequently, the Court dismissed his bail application, asserting that he could not be allowed to manipulate his wife's life and dignity at will.

Source- SCC Online

11. HEADING OUTLINE

The Karnataka High Court has instructed the Bar Council of India to ensure that its website accurately reflects the current status of affiliated law colleges and universities.

CRUX OF THE CASE

THE KARNATAKA HIGH COURT HAS INSTRUCTED THE BAR COUNCIL OF INDIA TO ENSURE THAT ITS WEBSITE ACCURATELY REFLECTS THE CURRENT STATUS OF AFFILIATED LAW COLLEGES AND UNIVERSITIES.

Prepared & Published – By Adv. Himanshu Adhikari

Date- 14 May 2024

Aspect	Details
Case Title	BMS College of Law v. Bar Council of India, WRIT PETITION NO. 9698 OF 2024
Court	Karnataka High Court
Decision Date	23-04-2024
Petitioner	BMS College of Law
Respondent	Bar Council of India (BCI)
Petitioner's Request	Writ of Mandamus directing BCI to update its "Approved List of CLE's (Law Colleges/Universities)"
Relief Sought	Reflect extension of affiliation/recognition granted to BMS Law College
Court's Direction	-BCI to consider petitioner's representation dated 13.02.2024 -Make necessary changes in the approved list of CLE's published on the website -Add new columns on website to reflect current status of affiliated law universities
New Columns Directed to be Added	-Date of application for extension of affiliation -Date and details of fee payment -Initial affiliation letter with PDF copy uploaded -Approved intake of the college -Any other relevant details deemed fit by BCI
Background	-BMS Law College established in 1963, offering law degree courses -Affiliation renewed periodically, fee for 2023-24 paid on 15-12-2023 -BCI's website showed affiliation till 2017-18, not reflecting extension up to 2026-27 -Representation submitted to BCI on 13-02-2024 seeking correction/updation of details

Aspect	Details
Court's Assessment	-BCI's failure to update affiliation details disadvantages BMS Law College -Website lacks current status of affiliated colleges, affecting transparency - Directed BCI to introduce new categories on website and consider petitioner's representation

In a case titled **BMS COLLEGE OF LAW V. BAR COUNCIL OF INDIA**, WRIT PETITION NO. 9698 OF 2024, decided on 23-04-2024, the Karnataka High Court addressed a petition seeking a writ of Mandamus to compel the Bar Council of India (BCI) to update its "Approved List of CLE's (Law Colleges/Universities)" on its website to reflect the extension of affiliation granted to BMS Law College. The court, presided over by Suraj Govindaraj, J., directed the BCI to consider the petitioner's representation dated 13.02.2024 and make necessary changes to the approved list. Additionally, the court instructed the BCI to add new columns on its website to reflect the current status of affiliated law universities, including details such as the date of application for affiliation extension, payment details, initial affiliation letter, approved intake, and any other relevant information. BMS Law College, established in 1963, had been renewing its affiliation with the BCI regularly, including payment for the extension of affiliation for the year 2023-2024. However, despite this, the BCI's website showed outdated affiliation details, causing confusion. The petitioner institution submitted a representation to the BCI seeking correction of details but received no response, leading them to approach the court with the writ petition. The court emphasized the importance of updating affiliation details for transparency and directed the BCI to introduce new categories on its website reflecting current status and consider the petitioner's representation for correction/updation of details.

Source- SCC Online

1. HEADING OUTLINE

Mother takes minor daughter away from father without permission; Bombay HC orders daughter's return to the US with her father

CRUX OF THE CASE

MOTHER TAKES MINOR DAUGHTER AWAY FROM FATHER WITHOUT PERMISSION; BOMBAY HC ORDERS DAUGHTER'S RETURN TO THE US WITH HER FATHER

**Prepared & Published – By Adv. Himanshu Adhikari
Date- 14 May 2024**

Aspect	Summary
Case Title	Abhijit S. Shingote v. State of Maharashtra, Criminal Writ Petition No. 341 of 2024
Date of Decision	07-05-2024
Court	Bombay High Court
Parties	US-resident husband (father/petitioner) and wife (respondent), parents of minor daughter
Issue	Custody and repatriation of minor daughter who was removed from the US by her mother without the father's consent
Decision	Petition allowed. Daughter to be repatriated to the US with her father.
Court's Analysis	- Court invoked its extraordinary jurisdiction for the best interest of the child. - Emphasized the paramount consideration of the child's welfare. - Considered precedent cases and legal principles regarding child custody. - Noted daughter's habitual lifestyle and comfort in the US. - Discussed the wife's litigation tactics in India and their impact on daughter's welfare.
Directions	- Wife to handover custody of daughter to husband within a week. - Wife to inform husband's Advocate of her willingness to go to the US or not within a week. - If wife chooses to go back to the US, she must comply with orders of Mecklenburg County Court. - Husband to bear expenses and ensure daughter's communication with mother. - Visitation rights for wife if she visits the US. - Husband to ensure daughter visits India twice a year.

In **ABHIJIT S. SHINGOTE V. STATE OF MAHARASHTRA**, Criminal Writ Petition No. 341 of 2024, the Bombay High Court addressed a case involving the custody and repatriation of a minor daughter. The husband, a US resident, filed a writ petition seeking custody and repatriation of his daughter, who had been taken to India by her mother without his

consent. The husband had obtained a temporary custody order from a US court, but the wife filed an FIR against him in India. The High Court allowed the petition, emphasizing the child's welfare and habitual lifestyle in the US. It declined the wife's request to stay the order, citing the best interest of the child. The Court issued time-specific directions, including handing over custody to the husband and allowing the wife to choose whether to return to the US. The husband was directed to bear expenses and ensure communication between the daughter and mother. The Court's decision aimed at safeguarding the child's welfare while addressing the parents' concerns.

Source- SCC Online